

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
6/25/26

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

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TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case

Title / Nature of Case

2:00 PM

LINE: 1

23-CIV-01255

BREANNE HERNANDEZ, ET AL VS. RECOLOGY, INC., ET AL

**BREANNE HERNANDEZ
MIGUEL ALVAREZ**

**GARY A. DORDICK
P. CHRISTIAN SCHELEY**

PLAINTIFF BREANNE HERNANDEZ’S PETITION TO APPROVE MINOR’S COMPROMISE OF DISPUTED CLAIM

TENTATIVE RULING:

For the reasons stated below, the petition is **CONTINUED** to August 27, 2026, at 2:00 p.m. in Department 2. The Court does not find the proposed compromise unfair on the present record, but because the claimant is a minor and the guardian ad litem is also a substantial recipient of the global settlement, the Court requires a supplemental declaration addressing: (1) the minor’s current medical, orthopedic, neurological, psychological, and educational condition; (2) the factual basis for the allocation of the global settlement among the adult plaintiffs and the minor; (3) the reasonableness of the requested attorney’s fee and costs as applied specifically to the minor’s claim; (4) final lien/reimbursement documentation; and (5) confirmation that the net proceeds will be deposited into a court-blocked insured account subject to withdrawal only by further court order.

Plaintiff shall file the supplemental declaration and all supporting papers no later than August 5, 2026.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiff shall prepare a written order consistent with this ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all parties as required by law. The Court further directs the parties’ attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM

LINE: 2

25-CIV-00538

**MC HVAC, INC., A CALIFORNIA CORPORATION VS. MODERN TIMES CUSTOM BUILDERS INC.,
A CALIFORNIA CORPORATION;**

MC HVAC, INC., A CALIFORNIA CORPORATION

MODERN TIMES CUSTOM BUILDERS INC., A CALIFORNIA CORPORATION;

MARY ANN ROUSSO

PATRICK J. WHITEHORN

PLAINTIFF'S MOTION TO BE RELIEVED AS COUNSEL OF RECORD

TENTATIVE RULING:

The unopposed motion of Mary Ann Rousso to be relieved as counsel of record for plaintiff MC HVAC, Inc. is granted. Pursuant to CRC 3.1362(e), the order does not become effective until proof of service of a copy of the signed order on the client has been filed with the court.

2:00 PM

LINE: 3

25-CIV-01520

JOSHUA COTTONARO, ET AL VS. KRISTIN SPINDT

JOSHUA COTTONARO
KRISTIN SPINDT

ANDREW G. WATTERS
GRANT H. BAKER

DEFENDANT KRISTIN SPINDT'S DEMURRER TO SECOND AMENDED COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendant Kristin Spindt's unopposed demurrer to the first, second, and third causes of action in Plaintiffs Josh Cottonaro's and Nicole Cottonaro's Second Amended Complaint is **SUSTAINED IN PART** and **OVERRULED IN PART**.

Defendant Kristin Spindt's request for judicial notice is **GRANTED**.

Defendant Kristin Spindt shall file an answer to the remaining causes of action no later than ten (10) days after entry of the formal order.

Defendant Kristin Spindt demurs to the first, second, and third causes of action in the Second Amended Complaint ("SAC") filed by Plaintiffs Josh Cottonaro and Nicole Cottonaro (collectively, the "Cottonaros") on the ground that none states facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

Generally, the SAC concerns an option addendum to a lease agreement under which the Cottonaros allegedly would have had the right to renew their tenancy, but which the landlords never executed. (Feb. 26, 2026, Second Amended Complaint ("SAC"), ¶¶ 6–13.) The Cottonaros allege they were surprised when the landlords terminated the tenancy and were "forced" to incur attorney fees to defend against an unlawful detainer action. (Id., ¶ 13.) The landlords, originally parties to this action, have since been dismissed with prejudice, leaving only claims against Spindt, who allegedly served as a dual agent for the Cottonaros and the landlords in the transaction. (SAC, ¶ 3; see Sept. 12, 2025, Request for Dismissal.)

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to determine whether they state a cause of action under any legal theory as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) A demurrer may be made to the entire complaint or to any of the causes of action therein. (Code Civ. Proc., § 430.50, subd. (a).)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) To be sustained, a "demurrer must dispose of an entire cause of action." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice may properly be taken, but disregard contentions, deductions, and conclusions. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) “The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) Thus, the complaint is construed liberally (Code Civ. Proc., § 452), and facts that may be inferred from those expressly alleged must also be accepted as true. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.)

FIRST CAUSE OF ACTION: FRAUD

The first cause of action is for fraud, the elements of which are: “(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974 [quotation marks omitted].) These elements must be pleaded with particularity, and “the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645 [quotation marks, ellipses, and bracketed text omitted].)

The SAC contains multiple allegations of purported misrepresentations by Spindt, including affirmative misrepresentations and failures to disclose. However, the only injury alleged to have been caused by the Cottonaros’ reliance is that they “were forced to incur attorney’s fees to defend against an Unlawful Detainer brought by a third person.” (SAC, ¶ 24.) Spindt contends this is not a compensable injury, citing the American rule against fee shifting. Although the reasoning behind this contention is flawed—attorney fees may be recoverable as damages in recognized circumstances (see, e.g., *Prentice v. North Amer. Title Guaranty Corp., Alameda Div.* (1963) 59 Cal.2d 618, 620 [tort-of-another doctrine])—the ultimate conclusion that the alleged fees do not support the fraud cause of action is correct. The SAC does not adequately allege that the attorney fees were proximately caused by the Cottonaros’ reliance.

“[T]here are two causation elements in a fraud cause of action. First, the plaintiff’s actual and justifiable reliance on the defendant’s misrepresentation must have caused him to take a detrimental course of action. Second, the detrimental action taken by the plaintiff must have caused his alleged damage.” (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1062.) The SAC alleges that the Cottonaros relied on Spindt’s representations by “sign[ing] the residential lease agreement and addendum.” (SAC, ¶ 22.) Although execution of the lease and option may have been a but-for cause of the later unlawful detainer action, the proximate cause of the attorney fees was the Cottonaros’ decision to retain possession of the leased property notwithstanding the absence of an executed option contract, followed by the third party’s decision to pursue a judicial remedy. Even if the Cottonaros retained counsel to defend the unlawful detainer action under the mistaken belief that the option was enforceable—which is not alleged—the SAC does not allege facts showing that continued reliance on Spindt’s prior representations was justified once the validity of the option was disputed.

Accordingly, the demurrer to the first cause of action is **SUSTAINED**. Because the Cottonaros have already had an opportunity to cure defects in this cause of action and have not requested leave to amend, leave to amend is **DENIED**. (See *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 Cal.App.4th 1403, 1423.)

SECOND AND THIRD CAUSES OF ACTION: BREACH OF CONTRACT AND BREACH OF THE IMPLIED COVENANT

The second and third causes of action are for breach of contract and breach of the implied covenant of good faith and fair dealing. A valid contract is an element of both causes of action. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; see *Robinson v. Magee* (1858) 9 Cal. 81, 83.)

In opposition to the prior demurrer to these causes of action, the Cottonaros contended that Spindt may be held liable on the lease and option addendum even though the contracts identified her principals, the landlords, as the contracting parties. The Court acknowledged that agency principles may support such liability under some circumstances, but found that the prior complaint did not allege facts supporting those theories.

“Normally, the agent will not be liable on a written contract made in the name of the principal. (See Rest.3d, Agency § 6.01(2).)” (3 Witkin, Summary of Cal. Law (11th ed. 2025) Agency and Employment, § 207.) “If the agent has no authority to make the contract, the usual remedy of the third party is on the warranty of authority[,]” rather than on the contract. (Ibid.; see Civ. Code, §§ 2342, 3318; *Kohlberg v. Havens* (1919) 41 Cal.App. 222, 225.) “But if, in addition to the lack of authority there is bad faith, i.e., if the agent enters into the contract without believing that he or she has authority to do so, the California rule makes the agent liable on the contract as a principal.” (3 Witkin, Summary of Cal. Law, supra, Agency and Employment, § 207; see Civ. Code, § 2343, subd. (2); *Borton v. Barnes* (1920) 48 Cal.App. 589, 591–596.)

To cure the defect identified on the prior demurrer, the SAC now alleges that Spindt did not have authority to draft and present the option addendum to the Cottonaros and knew she had no such authority. (SAC, ¶ 33.) Those allegations are sufficient at the pleading stage to support liability against an agent on a contract, inferring from the SAC that presentation of the option addendum constituted an offer. (See, e.g., *Nicholls Grain & Milling Co. v. Jersey Farm Dairy Co.* (1933) 134 Cal.App. 126, 130–131.)

Spindt argues that the document, unsigned by Spindt or the landlords, demonstrates that no contract was formed. (See SAC, exh. B.) But this argument depends on the interpretation of the option addendum and its signature block. When a contract makes clear that it will become operative only if all parties sign, signatures are necessary for formation. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 358.) But a signed writing is not required in every case to bind a party. (See, e.g., *O'Donnell v. Lutter* (1945) 68 Cal.App.2d 376, 382–383.)

The presentation of the option addendum alongside the already executed lease may be construed, at the pleading stage, as an offer—especially in light of the allegation that Spindt knew the option was material to the Cottonaros. (See SAC, ¶ 8.) The SAC sufficiently alleges that a contract was formed when the Cottonaros accepted that offer by signing the addendum. Accordingly, the SAC sufficiently alleges a contract between the Cottonaros and the landlords, made through Spindt as the landlords’ agent, on which Spindt may be held directly liable based on her alleged bad faith.

Spindt also contends that the landlords are necessary parties whose absence prohibits the Cottonaros from proceeding on their contract causes of action. A necessary party is a person whose absence means either (1) complete relief cannot be afforded among the parties to the action, or (2) a judgment will leave a party to the action exposed to a risk of additional or inconsistent obligations. (Code Civ. Proc., § 389, subd. (a).) But a necessary party is not the same as an indispensable party. Only if an absent person is indispensable will the plaintiff be prohibited from proceeding. (See *id.*, subd. (b).)

Thus, before dismissing any cause of action for nonjoinder, courts must examine the statutory factors and determine indispensability. (See *Pinto Lake MHP LLC v. County of Santa Cruz* (2020) 56 Cal.App.5th 1006, 1019–1020.) “The determinations under [Code of Civil Procedure section 389] subdivision (b) ‘must be based on fact-specific considerations. [Citation.] These determinations are anything but pure legal conclusions [T]hey involve the balancing of competing interests and must be steeped in “pragmatic considerations.”’” (*County of San Joaquin v. State Water Resources Control Bd.* (1997) 54 Cal.App.4th 1144, 1152 [brackets and ellipsis in original].) Spindt does not address those factors and does not argue that the landlords are indispensable parties. She therefore has not established that nonjoinder is grounds for demurrer.

Spindt’s final argument is that the Cottonaros cannot recover damages for their alleged moving expenses. But the SAC alleges other injuries resulting from the alleged breach of contract. (See SAC, ¶ 31 [alleging the option addendum limited rent increases and that the breach caused increased rent for a replacement tenancy].) A demurrer does not lie to only part of a cause of action, and Spindt did not move to strike the challenged allegations. The argument therefore does not support sustaining the demurrer.

Accordingly, the demurrer to the second and third causes of action is **OVERRULED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant Kristin Spindt shall prepare a written order consistent with the Court’s ruling for the Court’s signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE: 4

25-CIV-03474

LAYA WASHINGTON VS. PORSCHE CARS NORTH AMERICA, INC., ET AL

LAYA WASHINGTON
PORSCHE CARS NORTH AMERICA, INC.

ROY ENAV
MICHAEL AYZEN

PLAINTIFF LAYA WASHINGTON’S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFFS REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

TENTATIVE RULING:

For the reasons stated below, Plaintiff Laya Washington’s unopposed Motion to Compel Further Responses to Plaintiff’s Requests for Production of Documents, Set One, filed December 17, 2025, is **GRANTED IN PART** and **DENIED IN PART**.

As to RFP No. 30, the motion is **GRANTED IN PART**, subject to the limitations set forth below. RFP No. 30 seeks:

All DOCUMENTS, in the form of a list or compilation, of other Customer Complaints in YOUR ESI of database(s) that are SUBSTANTIALLY SIMILAR to complaints made by Plaintiff with respect to the SUBJECT VEHICLE in other 2022 Porsche Panamera vehicles.

Defendant Porsche Cars N.A., Inc. (“PCNA”) responded:

PCNA objects to this request as vague, ambiguous, overly broad, and as asking for information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence including but not limited to that it does not take into consideration the statutory construct of the Song-Beverly Consumer Warranty Act. Whether Plaintiff is entitled to relief under the Song-Beverly Consumer Warranty Act is entirely unrelated to complaints in other 2022 Porsche Panamera vehicles. This case concerns whether Plaintiff is entitled to a remedy under the facts of this case. See *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216. Moreover, the request fails to describe with reasonable particularity the documents or categories of documents being requested, in violation of CCP 2031.030(c)(1). In addition, the term "complaints made by Plaintiff" is not defined, described, or otherwise explained in this request and, without definition, description, or explanation is vague, ambiguous and the information referred to or sought cannot be reasonably determined, without speculation. PCNA objects to the extent this request asks for information that is protected by the right to privacy. PCNA objects to this request to the extent it may call for information that is confidential, commercially sensitive, and/or proprietary. PCNA further objects to the extent this request asks PCNA to respond on behalf of any other entity.

PCNA’s objections are **OVERRULED** except as to overbreadth, which is sustained to the extent reflected in this ruling. RFP No. 30 seeks discoverable documents, but the request is overbroad as drafted. The Court limits RFP

No. 30 to customer complaints in California, not nationwide, that pertain to 2022 Porsche Panamera vehicles, not other years, makes, or models, and that are substantially similar to the complaints made by Plaintiff regarding the subject vehicle.

Within 10 days of notice of entry of this order, PCNA shall serve a further verified response agreeing to produce all nonprivileged, responsive documents as limited by this order. To the extent PCNA withholds any responsive documents based on privilege, PCNA shall serve a code-compliant privilege log.

As to RFP No. 31, the motion is **DENIED**. RFP No. 31 seeks:

All DOCUMENTS that refer to, reflect, or relate to any Field Service Action issued, or in the process of being issued, in response to complaints experienced by Plaintiff as described in Defendant's warranty history/summary and within the line items of the repair orders created at Defendant's authorized repair facility.

PCNA responded by asserting several objections, followed by the statement:

Subject to and without waiving these objections, PCNA is unable to comply with this request. PCNA has made a diligent search and reasonable inquiry and has no "Field Service Actions," and no responsive documents have ever existed.

PCNA's response is code-compliant and sufficient. It substantially complies with the statement-of-inability-to-comply requirements of Code of Civil Procedure section 2031.230. Plaintiff's belief that PCNA must have responsive documents does not constitute grounds to compel PCNA to provide a further response.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiff shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM

LINE: 5

25-CIV-04772

BETHANY LIOU, ET AL VS. JON O. FREEMAN, ET AL

BETHANY LIOU
JON O. FREEMAN

PRO SE
SABAA GHOMASHCHI

DEFENDANTS SHAFIQ TAYMUREE AND STONECREST FINANCIAL, INC'S MOTION FOR ISSUE AND MONETARY SANCTIONS

TENTATIVE RULING:

For the reasons stated below, the Motion for Imposition of Monetary Sanctions by Defendants Stonecrest Financial, Inc., Secured Income Fund-II, LLC, PLM Lender Services, Inc., Jon O. Freeman, and Shafiq Taymuree ("Defendants") against Plaintiffs Bethany Liou, Grande Oak, LLC, and Grande, LLC ("Plaintiffs") is **CONTINUED** to October 8, 2026 at 2:00 p.m. in Department 2 for Defendants to serve Plaintiffs with a copy of the motion and supporting papers.

On December 10, 2025, Plaintiffs' counsel filed a motion to be relieved as counsel. At that time, Defendants had not filed or served this Motion for Sanctions, and the hearing on this motion was not included in the proposed order relieving counsel. On December 17, 2025, Defendants filed this Motion for Sanctions and properly served it on Plaintiffs' counsel, who was then counsel of record. However, on December 19, 2025, the Court granted Plaintiffs' counsel's application to be relieved as counsel. The order relieving counsel does not identify this Motion for Sanctions or its hearing date. As a result, there is no evidence that Plaintiffs, who are now in propria persona, have notice of this hearing. No opposition has been filed or served.

Defendants shall serve Plaintiffs with the Motion for Sanctions and all supporting papers no later than July 1, 2026, and shall file proof of service with the Court at least five court days before the continued hearing date.

Plaintiffs may file and serve an opposition to the motion no later than nine court days before the continued hearing date. Although Plaintiff Bethany Liou may represent herself in this action, Plaintiffs Grande Oak, LLC, and Grande, LLC are limited liability companies and must be represented by licensed counsel to proceed in this action. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145, 1149 [corporation must be represented by licensed counsel in proceedings before a court, and failure to be represented by counsel is a curable defect]; see also *Prato v. Gioia* (2025) 112 Cal.App.5th 651, 663 [LLC/corporate entity could not represent itself or appear through an individual].)

Defendants may file and serve any reply no later than five court days before the continued hearing date.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have

appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 6

25-CIV-05899

PHILIPPOS GRATSINOPOULOS, ET AL VS. FRANK RAMIREZ, ET AL

PHILIPPOS GRATSINOPOULOS
FRANK RAMIREZ

MARCIA A. WALLIS
CANDICE S. NAM

DEFENDANTS FRANK RAMIREZ AND FRANK RAMIREZ INSURANCE AGENCY, INC.'S DEMURRER TO FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendants Frank Ramirez and Frank Ramirez Insurance Agency's Demurrer to the Sixth Cause of Action for Unfair Competition, Seventh Cause of Action for Negligent Misrepresentation, and Eighth Cause of Action for Promissory Estoppel in Plaintiff's First Amended Complaint ("FAC") is **SUSTAINED WITH LEAVE TO AMEND** pursuant to Code of Civil Procedure section 430.10, subdivision (e).

SEVENTH CAUSE OF ACTION FOR NEGLIGENT MISREPRESENTATION

The elements of a claim for negligent misrepresentation are: (1) the misrepresentation of a past or existing material fact; (2) without reasonable ground for believing it to be true; (3) with intent to induce another's reliance on the fact misrepresented; (4) justifiable reliance on the misrepresentation; and (5) resulting damage. (*Y.P. v. Wells Fargo Co.* (2026) 119 Cal.App.5th 1069; *Sproul v. Vallee* (2025) 116 Cal.App.5th 285.) Each element must be factually and specifically alleged, as liberal construction of pleadings does not apply to sustain defective misrepresentation pleadings. (*Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513.) The causal elements, particularly reliance, must be specifically pleaded, and a mere assertion of reliance without specific factual allegations is insufficient. (*Id.*; *National Union Fire Ins. Co. of Pittsburgh, PA v. Cambridge Integrated Services Group, Inc.* (2009) 171 Cal.App.4th 35.) Courts have found complaints inadequate where they fail to identify who made the representation, what specific factual representations were made, or facts suggesting the defendant should have known the representations were untrue. (*Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267.)

Here, the demurring Defendants argue that Plaintiff's alleged reliance on a representation inconsistent with the Agent Appointment Agreement ("AAA") was not reasonable given Plaintiff's industry experience and the terms of the AAA. Plaintiff alleges that "Defendant Ramirez represented to Plaintiff that he had authority from Farmers to approve the sale of Plaintiff's business to the Buyer Plaintiff identified. He also stated that Plaintiff did not need to appeal his termination because Farmers would honor the sale to his approved buyer and/or contract value." (FAC, ¶ 164.) Plaintiff further alleges that "Defendant Ramirez in fact knew or should have known that Farmers had not approved the transaction because Buyer was not to a family member, and he knew the basis of Plaintiff's termination," and that Ramirez "knew or should have known that he did not have the authority to tell Plaintiff that Defendant Farmers gave him authority to approve the Buyer." (*Id.*, ¶ 168.)

The terms of the AAA contradict those alleged assertions because the AAA provides that any sale of the agency must be approved by the companies identified in the agreement, i.e., the Farmers Defendants. (FAC, Exh. A, ¶ 1.) The element of justifiable reliance is therefore insufficiently pleaded.

The demurrer to this cause of action is also sustained based on Plaintiff's failure to plead justifiable reliance with sufficient particularity. The FAC does not allege that the Farmers Defendants communicated to Plaintiff that the demurring Defendants had authority to approve the sale of Plaintiff's business. Accordingly, the demurrer to the Seventh Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

EIGHTH CAUSE OF ACTION FOR PROMISSORY ESTOPPEL

The elements of a cause of action for promissory estoppel are: (1) a clear promise; (2) reliance; (3) substantial detriment; and (4) damages measured by the extent of the obligation assumed and not performed. (*Coyote Aviation Corp. v. City of Redlands* (2025) 111 Cal.App.5th 955.) The promise must be one on which the complaining party relied on to the party's prejudice. (*Clarke v. Yu* (2026) 119 Cal.App.5th 19.) The promise must also be clear and unambiguous and cannot be based on preliminary discussions or negotiations. (*Id.*; *Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411.)

Here, Plaintiff's FAC alleges that "[a]fter the termination meeting and receiving his termination notice, Defendant Ramirez and Farmers promised Plaintiff that he could sell his book of business and/or receive contract value if he resigned and obtained a qualified buyer. Based on these promises, the Plaintiff did not appeal his termination within the 10 days." (FAC, ¶ 173.) The alleged promise was therefore conditioned on Plaintiff both resigning and obtaining a qualified buyer, which, as discussed above with respect to negligent misrepresentation, required approval by the Farmers Defendants. (See FAC, Exh. A, ¶ 1.) The alleged promise is therefore based on bargained-for performance rather than a clear promise inducing reliance. In addition, to the extent a promise by the Ramirez Defendants is alleged, it conflicts with the terms of the AAA.

Accordingly, the demurrer to the Eighth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

SIXTH CAUSE OF ACTION FOR UNFAIR COMPETITION

California's Unfair Competition Law ("UCL"), codified at Business and Professions Code section 17200, defines "unfair competition" to include "any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising" and any act prohibited by Chapter 1, commencing with section 17500, of Part 3 of Division 7 of the Business and Professions Code. (Bus. & Prof. Code, § 17200.) A plaintiff asserting a UCL claim need not prove all three prongs. The statute is disjunctive, and the unlawful, unfair, and fraudulent prongs provide separate and distinct theories of liability. (*Beverage v. Apple, Inc.* (2024) 101 Cal.App.5th 736.) A private plaintiff must also satisfy the UCL standing requirement by demonstrating injury in fact and loss of money or property as a result of the alleged unfair competition. (Bus. & Prof. Code, § 17204.) A predicate violation of a federal or state statute, regulation, or common law rule may serve as the basis for a claim under the unlawful prong. (*People ex rel. Dept. of Motor Vehicles v. Cars 4 Causes* (2006) 139 Cal.App.4th 1006.)

Here, the demurring Defendants argue that Plaintiff's UCL cause of action depends on the same allegations used to support the other deficient causes of action and is therefore insufficient. In addition to allegations underlying the negligent misrepresentation and promissory estoppel causes of action, Plaintiff alleges that

Defendant Ramirez disseminated an unlawful recording of Plaintiff to his office and violated Plaintiff's rights under Penal Code section 632 by using and playing the allegedly illegal recording. (FAC, ¶ 156, subds. (f), (n).) However, those allegations relate to the Penal Code section 632 claim, which has been dismissed as to the Ramirez Defendants. The UCL cause of action is therefore derivative of dismissed or insufficiently pleaded claims.

Accordingly, the demurrer to the Sixth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

UNCERTAINTY

Defendants also argue that the FAC is uncertain because it refers to both the individual defendant, Ramirez, and the entity defendant, Frank Ramirez Insurance Agency, as "Defendant Ramirez." (Demurrer, p. 15:16–20.) Although additional facts clarifying which defendant took each alleged action would be helpful, the pleading is not so uncertain that Defendants cannot reasonably determine what is being alleged against them.

Accordingly, the demurrer to each challenged cause of action on the ground of uncertainty is **OVERRULED**.

Plaintiff may file a Second Amended Complaint within 10 days of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Ramirez Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE: 7

25-CIV-05899

PHILIPPOS GRATSINOPOULOS, ET AL VS. FRANK RAMIREZ, ET AL

PHILIPPOS GRATSINOPOULOS
FRANK RAMIREZ

MARCIA A. WALLIS
CANDICE S. NAM

DEFENDANTS FRANK RAMIREZ AND FRANK RAMIREZ INSURANCE AGENCY, INC.'S MOTION TO STRIKE FIRST
AMENDED COMPLAINT

TENTATIVE RULING:

Defendants Frank Ramirez and Frank Ramirez Insurance Agency's Motion to Strike portions of Plaintiff's First Amended Complaint is **GRANTED IN PART** as to paragraph 156, subparagraphs (f), (m), and (n), and paragraphs 157 through 158, as to the Ramirez Defendants only, pursuant to Code of Civil Procedure sections 435 and 436. The remainder of the Motion to Strike is **MOOT** in light of the Court's tentative ruling sustaining the moving Defendants' demurrer to Plaintiff's First Amended Complaint.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Ramirez Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE: 8

25-CIV-09212

BANDEL CARANO VS. FMA BUILDERS

BANDEL L. CARANO
FMA BUILDERS

WILLIAM R GARRETT
DAVID DAVIDSON

DEFENDANT/CROSS COMPLAINANT FMA BUILDERS' MOTION TO DEEM CASE COMPLEX AND STAY ALL DISCOVERY PENDING ENTRY OF CASE MANAGEMENT ORDER PURSUANT TO CALIFORNIA RULES OF COURT, RULE 3.400(a)-(c); THE STANDARDS OF JUDICIAL ADMINISTRATION 3.10; CALIFORNIA CODE OF CIVIL PROCEDURE 187, 128 AND 2017.020 and SMC Local Rule 3.300

TENTATIVE RULING:

For the reasons stated below, the motion is **GRANTED IN PART** and **DENIED IN PART**. The request to deem the case complex is **MOOT** because the action has already been deemed complex and assigned to this department pursuant to San Mateo County Local Rule 3.300. The Court has issued Case Management Order No. 1 and will not enter a competing case management order proposed by either side.

The request for a temporary stay of discovery is **GRANTED**. All discovery that has been propounded to date is stayed, and the time to respond to that discovery is tolled, pending appointment of the special master and completion of a meet and confer process before the special master regarding how discovery should proceed under Case Management Order No. 1. No additional party discovery shall be propounded during the stay absent agreement of the parties or further court order.

The request to appoint Robert A. Bellagamba as special master is **GRANTED IN PRINCIPLE**, subject to submission of a proposed order defining the scope of reference, compensation, interim allocation of fees, reporting procedure, objection procedure, and any separate mediation role. After the special master is appointed, the parties shall promptly meet and confer with the special master regarding discovery procedures, including the sequencing of written discovery, document production, inspections, depositions, expert discovery, discovery involving newly added parties, and any discovery issues not specifically addressed by Case Management Order No. 1. Any supplemental procedures must be consistent with Case Management Order No. 1 unless otherwise ordered by the Court.

If the parties agree on supplemental discovery procedures, they shall submit a stipulated supplemental case management order or discovery protocol. If they cannot agree, the special master may make recommendations to the Court consistent with the order of reference and Case Management Order No. 1.

The Court does not decide at this time whether mediation fees, mediator fees, or special-master fees may be recovered by any party as costs, attorney fees, or otherwise after judgment or other disposition. That issue is premature and is preserved for any later properly noticed cost or fee proceeding. Any interim allocation or payment of such fees is without prejudice to any party's right to seek recovery, or to oppose recovery, after judgment or other disposition.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Defendant FMA Builders shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM

LINE: 9

25-CLJ-07809

U.S. BANK NATIONAL ASSOCIATION VS. JENNIFER N FLORES

U.S. BANK NATIONAL ASSOCIATION
JENNIFER N FLORES

DOUGLAS S WALLACE
SACHA B MANIAR

DEFENDANT JENNIFER FLORES' MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

TENTATIVE RULING:

For the reasons stated below, the Motion to Set Aside Default and Default Judgment brought by Defendant Jennifer N. Flores is **GRANTED**. Plaintiff's Request for Judicial Notice in Opposition is **GRANTED**.

The Court notes that Defendant has not provided the address for the hearing. Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, California 94080. (See Cal. Rules of Court, rule 3.1110(b)(1) [the first page of each paper must specify the date, time, and location, if ascertainable, of any scheduled hearing].)

BACKGROUND

According to the Complaint, the parties entered into a credit card agreement on or about April 23, 2019. (Complaint, p. 3, box BC-1 & Exh. A.) Plaintiff seeks \$5,482.45 in damages, plus court costs. (Id., p. 3, boxes BC-4–BC-6 & Exh. B.) Plaintiff alleges that Defendant breached the agreement on or about May 30, 2025, by failing to make payments due under the agreement.

Plaintiff requested default, and the clerk entered Defendant's default on December 17, 2025, with a memorandum of costs in the amount of \$297.61. The Court refers to this entry of default as the "Default." Plaintiff then requested default judgment in the total amount of \$5,780.06, which the Court signed and entered on February 10, 2026. The Court refers to this judgment as the "Default Judgment."

Through the present Motion, Defendant asks the Court to set aside the Default and Default Judgment so the case may be decided on its merits.

Defendant asserts that judgment was entered against her through mistake, excusable neglect, inadvertence, and surprise. She further asserts that she acted diligently in seeking assistance and bringing the Motion after learning of the judgment. She attaches a proposed Answer. (Flores Decl., ¶ 16 & Exh. B.) Defendant also notes that the only prejudice asserted by Plaintiff is limited to the ordinary burdens of litigation.

Plaintiff submits only the Proof of Service of Summons filed in this action on October 27, 2025. (Plaintiff's Request for Judicial Notice, ¶ 1 & Exh. A.) Defendant does not deny that she was served. (See Flores Decl., ¶ 3.)

Evidence

Defendant is the single parent of, and sole provider for, her two children, ages 14 and 16. (Flores Decl., ¶ 6.) Defendant's minor daughter was the victim of a violent crime. (Id., ¶ 7.) From September through December 2025, Defendant's daughter was experiencing the effects of that violent crime and could not be alone. Defendant stayed with her daughter as her daughter worked with law enforcement to report and investigate the crime. (Id., ¶¶ 8–11.) During these months, Defendant was focused on her daughter's health, safety, and well-being, while also attending nursing school. (Id., ¶¶ 8–13.)

Defendant learned of this case when she was served on October 26, 2025. Around that same time, she also learned that a hearing, specifically a case management conference, was set for August 19, 2026. (Flores Decl., ¶¶ 3–4.) Defendant did not realize that she had only 30 days to respond because the hearing date was many months away. When she attempted to file an Answer as soon as she was able, during the first week of January 2026, it was too late. (Id., ¶¶ 5, 13–14.) She then sought assistance from legal aid. (Id., ¶ 15.)

LEGAL STANDARDS

Code of Civil Procedure section 473, subdivision (b) provides, in relevant part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ...

(Code Civ. Proc., § 473, subd. (b).)

The Motion was filed on February 14, 2026, within six months of both the December 17, 2025 Default and the February 10, 2026 Default Judgment. The Motion is therefore timely.

As the California Supreme Court has explained:

The purpose of this section is to enable courts to relieve a party from the consequences of enforcing the strict and technical rules of procedure, by applying such equitable rules in any individual case as will do justice between the litigants.

Melde v. Reynolds (1900) 129 Cal. 308, 312.) Further, “[b]ecause the law favors disposing of cases on their merits, ‘any doubts in applying section 473 must be resolved in favor of the party seeking relief from default’” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 [citations omitted].)

Courts have defined the relevant terms. A “mistake” justifying relief may be either a mistake of fact or a mistake of law. “A mistake sufficient to vacate a dismissal may be found where a party, under some erroneous conviction, does an act he would not do but for the erroneous conviction.” (*H.D. Arnaiz, Ltd. v. County of San Joaquin* (2002) 96 Cal.App.4th 1357, 1369 [citation omitted].) Further, “[i]nadvertence is lack of heedfulness or attentiveness, inattention, fault from negligence. Excusable neglect is that neglect which might

have been the act of a reasonably prudent person under the same circumstances.” (*Alderman v. Jacobs* (1954) 128 Cal.App.2d 273, 276 [citation omitted].)

Finally, strong policies favoring adjudication on the merits and liberal construction of Code of Civil Procedure section 473, subdivision (b), favor granting the Motion:

The general rule concerning Code of Civil Procedure section 473 review is stated in *In re Marriage of Connolly* ...: “In reviewing the evidence in support of a section 473 motion, we extend all legitimate and reasonable inferences to uphold the judgment. The disposition of such a motion rests largely in the discretion of the trial court, and its decision will not be disturbed on appeal unless there has been a clear abuse of discretion. Although precise definition is difficult, it is generally accepted that the appropriate test of abuse of discretion is whether or not the trial court exceeded the bounds of reason, all of the circumstances before it being considered. [Citations.] We have said that when two or more inferences can reasonably be deduced from the facts, a reviewing court lacks power to substitute its deductions for those of the trial court. [Citations.]” However, the standard of abuse of discretion is ameliorated somewhat by the general policy promoting a hearing on the merits. Further, the broad remedial provisions of Code of Civil Procedure section 473 “should be liberally applied and the power freely exercised to carry out the policy in favor of trial on the merits.” Thus, in determining the merits of a Code of Civil Procedure section 473 motion, the court should take into account the circumstances of the case and the prejudice, if any, to the parties. There is also a strong policy behind granting relief if the moving party brings the motion for relief within the statutory time.

(*Carrasco v. Craft* (1985) 164 Cal.App.3d 796, 803 [emphasis retained; multiple citations omitted].)

DISCUSSION

Mistake and Inadvertence

Here, Defendant’s mistake was believing that she had more time to respond to the lawsuit because she received notice that the next hearing was scheduled for August 2026. (Flores Decl., ¶ 5.) Under that erroneous belief, Defendant did not attempt to file her Answer until the first week of January 2026. Had she understood that her written response was due within 30 days of service, she would not have waited until January to attempt to respond.

Plaintiff asserts that because the Summons clearly gave Defendant 30 calendar days to file a written response, Defendant waived her ability to avoid default judgment by failing to file an Answer by November 26, 2025. However, the existence and purpose of Code of Civil Procedure section 473, subdivision (b), counters the assertion that waiver is the necessary result. (See *Melde, supra*, 129 Cal. at p. 312.)

Plaintiff further asserts that ignorance of the law does not provide grounds for relief. Plaintiff relies on a case applying the equitable doctrine of extrinsic mistake, rather than the statutory relief requested here:

The motion to set aside the default was granted pursuant to the superior court’s broad equity jurisdiction. Code of Civil Procedure section 473 could not provide the respondent with relief because

his motion to set aside the default was brought more than six months after the default had been entered.

(*Stiles v. Wallis* (1983) 147 Cal.App.3d 1143, 1147.)

Moreover, the *Stiles* court found that the facts of that case did not show extrinsic mistake and that the elements of that equitable theory were not satisfied. (*Stiles, supra*, 147 Cal.App.3d at pp. 1147–1148.) Here, unlike in *Stiles*, the Motion is timely brought under Code of Civil Procedure section 473, subdivision (b). In addition, because Defendant received notice stating that the next hearing was a case management conference set for August 2026, it was reasonable for her to be confused by the seemingly contradictory information between the Summons and the notice and to assume that she had more time to respond.

The record supports a finding of reasonable mistake and inadvertence in the form of a lack of further heedfulness or attentiveness prompted, at least in part, by the later hearing date. Defendant's mistake also may be characterized as a mistake of fact under *Arnaiz*. The evidence supports the conclusion that Defendant made an inadvertent mistake and then attempted to correct it. The Motion also clearly sounds in excusable neglect.

Excusable Neglect

Defendant's failure to attend to this action until the first week of January 2026 is excusable under the circumstances. Defendant was a single mother who was attending nursing school while providing necessary care to her minor daughter, who had suffered a violent crime. Defendant was served while those circumstances were ongoing. Her inability to come to court and respond to the lawsuit until the first week of January resulted from excusable neglect caused by the acute need to prioritize her child's health and well-being.

Plaintiff asserts that "[t]he mere fact that Defendant is busy and occupied with other affairs is insufficient to constitute excusable neglect." (Opp., 4:9–10.) But Defendant's Declaration provides evidence of serious, emergent circumstances that reasonably support a finding of excusable neglect. (Flores Decl., ¶¶ 6–13.) Defendant was not simply busy or otherwise occupied. Plaintiff submits no contrary evidence, only evidence that Defendant was served, which Defendant does not deny. (Plaintiff's Request for Judicial Notice, ¶ 1 & Exh. A; Flores Decl., ¶ 3.) Plaintiff's argument minimizes the serious and unfortunate circumstances that contributed to Defendant's confusion and excusable neglect and runs contrary to California's policy favoring resolution of cases on their merits.

Defendant also acted diligently. She attempted to file her Answer as soon as she was able and sought assistance from Bay Area Legal Aid when the Answer could not be filed.

Finally, granting the Motion would not prejudice Plaintiff. Plaintiff will simply be required to present its case on the merits. Plaintiff offers no evidence of prejudice beyond the ordinary burden of litigation. In light of *Carrasco*, that burden is outweighed by the policy favoring resolution of cases on their merits.

For all these reasons, the Court finds that Defendant has shown, at minimum, excusable neglect under Code of Civil Procedure section 473, subdivision (b), and has satisfied the other requirements of the statute.

JUDICIAL NOTICE IN OPPOSITION

Plaintiff's Request for Judicial Notice is **GRANTED** as to the document submitted with the request, described as the Proof of Service of Summons filed in this action on October 27, 2025. (Plaintiff's Request for Judicial Notice, ¶ 1 & Exh. A.)

However, judicial notice of this document is limited to its existence, content, and authenticity. It does not extend to the truth of the factual matters stated in the document. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare, for the Court's signature, a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

**UD LAW AND MOTION CALENDAR
THURSDAY, JUNE 25, 2026**

2:00 PM

LINE: 1

26-UDL-00551

THE CROSSINGS PHASE I, L.P. VS. SUSAN MILLER, ET AL

**THE CROSSINGS PHASE I, L.P.
SUSAN MILLER**

**JULIENNE H COPON
JULIET M BRODIE**

DEFENDANT SUSAN MILLER’S DEMURRER TO PLAINTIFF’S UNLAWFUL DETAINER COMPLAINT

TENTATIVE RULING:

For the reasons stated below, the demurrer of Defendants Susan and Benjamin Miller to the complaint for unlawful detainer filed by Plaintiff The Crossings, Phase I, L.P. on May 11, 2026, is **OVERRULED**.

Defendants shall file an answer within five (5) calendar days after service of written notice of entry of this order. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

Plaintiff’s request for judicial notice of *MIMG CLXXII Retreat on 6th, LLC v. Miller* (Iowa 2025) 16 N.W.3d 489, a non-controlling Iowa Supreme Court decision, is **GRANTED** to the extent the Court may consider decisional law from another state and the existence of court records. (Evid. Code, §§ 452, subds. (a), (d), 453.) The Court does not take judicial notice of the truth of any disputed factual assertions in that decision. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.)

BACKGROUND

This is an unlawful detainer action for nonpayment of rent concerning the residential premises located at 1101 National Avenue, Unit 1108, San Bruno, California 94066 (the “subject property”). Plaintiff and Defendants are parties to a lease agreement for the subject property. The complaint alleges that Defendants breached the lease by failing to pay rent.

On March 18, 2026, Plaintiff served Defendants with a written notice requiring them to pay rent within three days or quit within 30 days pursuant to Code of Civil Procedure section 1161, subdivision (2). The notice identified April 20, 2026, as the 30-day vacate deadline. Defendants did not comply with the notice and remain in possession of the subject property. Plaintiff filed this action on May 11, 2026.

Defendants demur to the complaint on the ground that the notice is defective under the Coronavirus Aid, Relief, and Economic Security Act (CARES Act) because, according to Defendants, the CARES Act required Plaintiff to give them 30 days to cure the alleged nonpayment, not merely 30 days to vacate. Defendants rely

on *Sherwood Auburn, LLC v. Pinzon* (2022) 24 Wn.App.2d 664, 671–672. Defendants contend a demurrer is proper under Code of Civil Procedure section 430.10, subdivision (e), because service of a valid statutory notice is an element of an unlawful detainer cause of action. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 611.)

Plaintiff opposes the demurrer, contending that *Sherwood* is non-controlling and that Plaintiff's notice complied with the CARES Act because Defendants were given at least 30 days' notice to vacate. Plaintiff further contends that California law does not require a 30-day notice to pay rent. Plaintiff also relies on non-controlling authority holding that the CARES Act's 30-day notice requirement does not apply to rent defaults arising after the temporary moratorium period. (*MIMG CLXXII Retreat on 6th, LLC v. Miller* (Iowa 2025) 16 N.W.3d 489.)

LEGAL STANDARD

A demurrer tests the legal sufficiency of the pleading, not the evidence or other extrinsic matters. It therefore lies only where the defect appears on the face of the pleading or from matters properly subject to judicial notice. (Code Civ. Proc., §§ 430.10, subd. (e), 430.30, 430.70.) The Court treats a demurrer as admitting all material facts properly pleaded, but not contentions, deductions, or conclusions of fact or law. (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) "All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action." (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156–157 [citation and internal quotation marks omitted].)

DISCUSSION

The rules of statutory construction are straightforward. The Court first looks to the statutory text and gives the words their ordinary meaning. If the text is clear and unambiguous, the inquiry ordinarily ends. (*In re Marriage of McIntyre & Shayan* (2024) 106 Cal.App.5th 76, 82, review denied Jan. 15, 2025.)

The CARES Act provides that a lessor of a covered dwelling unit "may not require the tenant to vacate the covered dwelling unit before the date that is 30 days after the date on which the lessor provides the tenant with a notice to vacate." (15 U.S.C. § 9058(c)(1).) It also provides that the lessor "may not issue a notice to vacate under paragraph (1) until after the expiration" of the 120-day moratorium period beginning March 27, 2020. (15 U.S.C. § 9058(b), (c)(2).)

The Court need not decide, on this demurrer, whether the CARES Act's 30-day notice provision remains generally applicable to post-moratorium rent defaults. Even assuming the subject property is a covered dwelling and the CARES Act notice provision applies, Defendants have not shown a defect on the face of the complaint. Section 9058(c)(1) refers to a 30-day notice to vacate; it does not state that a tenant must receive 30 days to cure nonpayment of rent. *Sherwood Auburn* reads the statute differently, but it is non-controlling, and Defendants cite no controlling California or federal authority requiring this Court to follow that construction.

Here, the complaint alleges that Plaintiff served the notice on March 18, 2026. The notice required Defendants to pay rent within three days or quit within 30 days, and it set April 20, 2026, as the vacate deadline. Plaintiff did not file this action until May 11, 2026. Thus, even assuming the CARES Act applies, the

face of the complaint shows that Defendants received more than 30 days' notice to vacate before this action was filed. The notice also complied with the three-day pay-or-quit procedure required by Code of Civil Procedure section 1161, subdivision (2). Because Defendants raise no other challenge to the sufficiency of the complaint, the demurrer is **OVERRULED**.

Defendants shall file an answer within five (5) calendar days after service of written notice of entry of this order. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiff shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

Posted: 3:00 P.M.

